



CHAPTER xciv.

An Act to confer further powers on the Urban District Council of Filey in the East Riding of the County of York in relation to their gas and water undertakings and in relation to the sea-shore and to make further and better provision for the improvement health local government and finance of the district and for other purposes. A.D. 1904.

[22nd July 1904.]

WHEREAS the district of Filey in the east riding of the county of York is an urban district within the meaning of the Local Government Act 1894 and is under the control and management of the Filey Urban District Council (in this Act called "the Council"):

And whereas the Council were by the Filey Water and Gas Act 1898 (in this Act called "the Act of 1898") authorised to acquire the undertaking of the Filey Water and Gas Company and have acquired the same and now supply under the powers conferred by the Act of 1898 water in the district and in certain neighbouring districts and gas in the district:

And whereas it is expedient that the area within which the Council are authorised to supply water and gas should be extended and that further powers should be conferred upon the Council in relation to their gas and water undertakings:

And whereas it is expedient that powers should be conferred upon the Council which may enable them to adequately control and regulate the sea-shore in and near the district:

And whereas the Council were by Order of the Local Government Board dated the 19th day of March 1895 and

A.D. 1904. — made under the Local Government Act 1894 empowered to appoint overseers and by a like Order dated the 12th day of November 1895 were empowered to appoint and to revoke appointments of assistant overseers for the parish of Filey which was at the dates of those Orders and is now coterminous with the district :

And whereas it is expedient that the powers of the guardians of the Scarborough Union to appoint a collector of poor rates for the parish of Filey should cease so as to permit the consolidation of the collection of rates within the district :

And whereas it is expedient that further powers should be conferred upon the Council for the improvement health local government and finance of the district :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas an absolute majority of the whole number of the Council at a meeting held on the twenty-fifth day of September one thousand nine hundred and three after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Scarborough Evening News a local newspaper circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and district rate :

And whereas such resolution was published twice in the said Scarborough Evening News and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the tenth day of February one thousand nine hundred and four being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

and Commons in this present Parliament assembled and by the A.D. 1904.
authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited for all purposes as the Filey Short title.
Improvement Act 1904.

2. This Act is divided into Parts as follows :—

Act divided
into Parts.

Part I.—Preliminary.

Part II.—Gas.

Part III.—Water.

Part IV.—Sea-shore.

Part V.—Infectious Disease.

Part VI.—Buildings and Streets and Sanitary Matters.

Part VII.—Fire Brigade.

Part VIII.—Finance and Rating.

Part IX.—Legal Proceedings.

Part X.—Miscellaneous.

3. In this Act—

Interpreta-
tion.

“The district” means the urban district of Filey in the
east riding of the county of York ;

“The Council” means the Urban District Council ;

“The district fund” and “the general district rate”
mean respectively the district fund and the general
district rate of the district ;

“The sea-shore” means and includes the sea-shore fore-
shore and all the beach and sands within the district ;

“The Vagrancy Acts” means the Vagrancy Act 1824 and
any Act for the time being in force amending the
same ;

“The clerk” “the surveyor” “the medical officer of
health” “the inspector of nuisances” mean respec-
tively the clerk and the surveyor to the Council
and the medical officer of health and inspector of
nuisances of the district and “medical officer” shall
include any deputy medical officer of health duly
appointed and “the office” in relation to any of
the said officers means the office of that officer at
the Council offices or at such other place in the
district as the Council may from time to time appoint ;

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"Infectious disease" means any infectious disease to which the Infectious Disease (Notification) Act 1889 applies for the time being within the district ;

"Dairyman" means any cowkeeper purveyor of milk or occupier of a dairy ;

"Dairy" means any farm farmhouse cowshed milk store milk shop or other place from which milk is supplied or in which milk is kept for purposes of sale ;

"Daily penalty" means a penalty for each day on which any offence is continued after conviction therefor.

Limits of this Act and extension of gas and water limits.

4. The limits of this Act for the supply of gas and water shall be the limits of supply within the meaning of the Act of 1898 together with the parish of Muston in the east riding of the county of York and the limits of supply under the Act of 1898 shall be extended so as to include that parish and the Filey Water and Gas Act 1891 (so far as the same has not been repealed) the Act of 1898 and the Acts incorporated therewith shall apply to that parish.

Power to local authority &c. to supply water in case Council fails to supply.

5. If at any time after the expiration of five years from the commencement of this Act the Council are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Act in any part of the parish of Muston the Sherburn Rural District Council may provide a supply in the whole or any part of such parish in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such parish not sufficiently supplied by the Council as if in either case this Act had not passed.

If any difference shall arise between the Council and any such local authority company body or person as to the sufficiency of the supply of water in any part of such parish such difference shall be settled by an arbitrator to be appointed on the application of either party by the Local Government Board.

PART II.

GAS.

Power to refuse to supply persons in debt for other property.

6. If a person requiring a supply of gas from the Council has previously quitted premises at which gas was supplied to him by the Council without paying to them all gas or meter

rent due from him to the Council they may refuse to furnish to him a supply of gas until he pays the same. A.D. 1904.

7. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Council.

Period of error in defective meter.

8. Any fittings let for hire under the provisions of the Act of 1898 shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the person in whose possession the same may be provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

Fittings not to be subject to distress.

9. Every consumer of gas supplied by the Council who uses a gas engine shall if required to do so by the Council use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper repair the Council may cease to supply gas to such consumer.

Anti-fluctuators for gas engines.

The Council shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Council if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

10. In order to enable the Council to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Council may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Council's

As to specification of internal fittings and construction and placing of pipes &c. between mains and consumer's premises.

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mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :

- (2) The Council may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Council :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the Council's main and the consumer's meter shall be placed as near as reasonably practicable to such main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Council and the pipes shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Council Any officer of the Council duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Council's specification or if the meter is not placed as required by this section the Council may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Council refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Council's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

A.D. 1904.

Charges for gas supplied by means of prepayment meters.

11.—(1) The Council may charge for any gas supplied through a prepayment meter a not greater charge rate or rent than for gas supplied to private consumers within or without the district as the case may be through any other kind of meter or by any other method of supply.

(2) The Council shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meters and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith :

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Council in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter to the Council and the Council's Acts applicable to ordinary meters shall so far as applicable apply to prepayment meters.

(4) For the purposes of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

PART III.

WATER.

12. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy such dwelling-house or who shall allow such dwelling-house to be occupied shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Houses without proper supply of water.

13. The Council may put up continue remove or discontinue drinking fountains and cattle troughs with proper conveniences for the gratuitous supply of water for drinking and for watering of cattle and horses at such fountains or troughs respectively and may furnish or discontinue such gratuitous supply (but for such drinking and watering only) in such public places as the Council may think fit and every person who shall wilfully use any water so gratuitously supplied elsewhere or otherwise than as

Public drinking fountains.

A.D. 1904. herein-before mentioned or foul such water shall for every such offence be liable to a penalty not exceeding forty shillings which penalty may be recovered by the Council.

Cleansing
cisterns.

14. The Council may make byelaws for securing the cleanliness and freedom from pollution of tanks cisterns and other receptacles used for the storing of water used or likely to be used for drinking or domestic purposes or for manufacturing any liquid to be used by man for drinking whether aerated or otherwise.

Power to
lay pipes in
streets not
dedicated to
public use.

15. The Council may on application of the owner or occupier of any premises within their limits for the supply of water abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply doing as little damage as can be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers.

Detection of
waste.

16. Subject to the provisions of this Act the Council may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Council and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets roads lanes footpaths thoroughfares tramways and gas or water pipes.

Notice to
Council of
connecting or
disconnect-
ing meters.

17. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of some officer of or person authorised by the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Rebates on
water rates.

18. The Council may allow discounts or rebates to consumers of water in consideration of prompt payment of water rates or of large consumption by way of meter upon such scale and subject to such conditions and regulations as may be agreed

upon by the Council and such consumer Provided that any such discount or rebate shall in no case exceed ten per centum and shall be allowed equally to all consumers in like circumstances and notice of the provisions of this section and the effect thereof shall be contained in every demand note for water rate or rent. A.D. 1904.

PART IV.

SEA-SHORE.

19. The Council may make and enforce byelaws for the prevention of danger obstruction nuisance or annoyance to persons using the sea-shore and the sea-wall and esplanade adjoining thereto and in particular may by such byelaws— Byelaws as to sea-shore.

- (1) Regulate the erection or placing on the sea-shore or on such part or parts thereof as may be prescribed by such byelaws of any booths tents sheds stands and stalls (whether fixed or movable) or vehicles for the sale or exposure of any article or thing or any shows exhibitions performances swings roundabouts or other erections vans photographic carts or other vehicles whether drawn or propelled by animals or persons and the playing of any games on the sea-shore and generally regulate the user of the sea-shore for such purposes as shall be prescribed by such byelaws ;
- (2) Regulate the selling and hawking of any article commodity or thing on the sea-shore ;
- (3) Regulate the user of the sea-shore for riding and driving ;
- (4) Provide for the preservation of order and good conduct among persons frequenting the sea-shore and the sea-wall and esplanade adjoining thereto.

20. The Council may make byelaws—

- (1) For appointing and limiting the places on the sea-shore from which persons of each sex may bathe without using a bathing machine or tent and for prohibiting the use of any other place on the sea-shore for bathing without using a bathing machine or tent ;
- (2) For the preservation of decency and order at public bathing places on the sea-shore and for appointing and limiting the places on the sea-shore from which

Byelaws as to bathing.

A.D. 1904.

persons of the male and female sex may bathe together and from which they may bathe separately;

- (3) For regulating the hours during which bathing may take place from public bathing places on the sea-shore and for prohibiting the use of such places except during the hours so fixed; and
- (4) For prescribing the use of decent and sufficient bathing garments.

Sands and sea-shore to be deemed a street for certain purposes.

21. Every part of the sea-shore within the district shall for the purposes of the Vagrancy Acts be deemed to be a public place and shall be deemed to be a street for the purposes of section 29 of the Town Police Clauses Act 1847 and also for the purposes of so much of section 28 of that Act as relates to the following offences:—

Every person who slaughters or dresses any cattle except in the case of any cattle overdriven which may have met with any accident and which for the public safety or other reasonable cause ought to be killed on the spot;

Every common prostitute or night-walker loitering and importuning passengers for the purpose of prostitution;

Every person who wilfully and indecently exposes his person;

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language;

Every person who wantonly discharges any firearm or discharges any missile or makes any bonfire;

Every person who throws or lays any dirt litter or ashes or night soil or any carrion fish offal or rubbish on any street.

Power to license pleasure boats &c.

22.—(1) The Council may grant upon such terms and conditions as they may think fit licences for pleasure boats and pleasure vessels to be let for hire or to be used for carrying passengers for hire and to the boatmen or persons assisting in the charge or navigation of such boats and vessels and may charge a fee of not exceeding one shilling for every such licence.

(2) Any such licence may be granted for such period as the Council may think fit and may be suspended or revoked or

endorsed by the Council whenever they shall deem such suspension or revocation or endorsement to be necessary or desirable in the interests of the public provided that the existence of the power to suspend revoke or endorse the licence shall be plainly set forth in the licence itself. A.D. 1904.

(3) No person shall let for hire any pleasure boat or pleasure vessel not so licensed nor shall any person carry or permit to be carried passengers for hire in any pleasure boat or vessel not so licensed.

(4) No person shall act as boatman or assist in the charge or navigation of any pleasure boat or pleasure vessel when let for hire or when carrying passengers for hire who is not licensed by the Council as aforesaid.

(5) A licence under this section shall not be required for any boat or vessel duly licensed by or under any regulations of the Board of Trade or for any boatman or person assisting in the charge or navigation of such boat or vessel.

(6) No person shall carry or permit to be carried in any pleasure boat or pleasure vessel a greater number of passengers for hire than shall be specified in the licence applying to such boat or vessel and every owner of any such boat or vessel shall before permitting the same to be used for carrying passengers for hire paint or cause to be painted on a conspicuous part of the said boat or vessel the number of persons which it is licensed to carry.

(7) Every person who shall act in contravention of the provisions of this section shall for each offence be liable on summary conviction to a penalty not exceeding two pounds.

(8) Any person deeming himself aggrieved by the granting withholding suspension revocation or endorsement of any licence under the provisions of this section may appeal to a petty sessional court held for the district after the expiration of two clear days after such granting withholding suspension revocation or endorsement. Provided that the person so aggrieved shall give twenty-four hours' written notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as they see fit and to award costs to the successful party such costs to be recoverable summarily as a civil debt.

A.D. 1904.

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(9) Offences against the provisions of this section and penalties imposed or recoverable thereunder may be prosecuted and recovered summarily.

Sand &c.
not to be
removed
from sea-
shore.

23. Any person who at any time digs carries away or removes any sand gravel shingle rock soil or other material from the sea-shore shall for every such offence be liable to a penalty not exceeding twenty pounds :

Provided that this section shall not apply to the digging carrying away or removal of any sand gravel shingle rock or other material from the sea-shore by or with the consent of the lord of the manor or under an award made on the eighth day of September one thousand seven hundred and ninety-one under an Act passed in the twenty-eighth year of the reign of King George the Third intituled "An Act for dividing
" allotting and enclosing the several open and common arable
" fields meadows pastures commons and waste grounds within
" the township of Filey otherwise Fila in the East and North
" Ridings of the County of York."

PART V.

INFECTIOUS DISEASE.

Medical
officer may
require
dairymen to
furnish list
of sources of
their supply
of milk and
of their
customers.

24. If the medical officer of health shall have reasonable cause to believe that any person in the district is suffering from infectious disease attributable to milk supplied within the district he may by notice in writing require every person supplying milk to the person so suffering or to the house of which he is an inmate to furnish him with a list of all the farms dairies or places from which such person derives his supply of milk or from which he has derived his supply during the last six weeks and a list of the persons to whom he has within such six weeks supplied milk within the district and the Council shall pay to him for every such list the sum of sixpence and after the rate of sixpence for every twenty-five names contained therein and every such person failing to comply with such request shall for each such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Persons
engaged in
washing or
mangling

25. Whenever it shall be certified to the Council by the medical officer of health that it is desirable with a view to prevent the spread of infectious disease that he should be

furnished with a list of the customers of any person earning a livelihood or deriving gain by the washing or mangling of clothes the Council may require such person to furnish to them a full and complete list of the names and addresses of the customers for whom such person washed or mangled during the past six weeks and such person shall furnish such list accordingly and the Council shall pay to him or her for every such list after the rate of sixpence for every twenty-five names contained therein and every person who shall knowingly or wilfully offend against this enactment shall for each such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

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clothes to
furnish lists
of owners of
clothes in
certain cases.

26. The Council may provide or contract with any other person to provide nurses for attendance upon any person suffering from infectious disease within the district and may charge a reasonable sum for the service of any nurse provided by them.

Power to
provide
nurses.

27. Every dairyman supplying milk within the district from premises whether within or beyond the district shall notify to the medical officer of health all cases of infectious disease among persons engaged in or in connection with his dairy as soon as he becomes aware or has reason to suspect that such infectious disease exists and any such dairyman who makes default in so doing shall be liable to a penalty not exceeding forty shillings.

Dairymen to
notify infec-
tious disease
existing
amongst
their ser-
vants.

28. No person suffering from an infectious disease shall milk any animal the milk of which is intended for consumption within the district or pick fruit intended for consumption within the district or engage in any trade or business connected with food intended for consumption within the district or carry on any trade or business in such a manner as to be likely to spread such infectious disease and if he does so he shall be liable to a penalty not exceeding twenty shillings.

Infected
person not
to carry on
business &c.

29. If any dairyman shall at the request of the Council stop his milk supply within the district on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons residing within the district the Council may make compensation to him for any loss occasioned by such stoppage and any such compensation may be paid out of the district fund or general district rate.

Compensa-
tion to
dairymen.

A.D. 1904.

Power to
compensate
persons ceas-
ing employ-
ment.

30. If any person shall at the request in writing of the Council or the medical officer of health stop his employment for the purpose of preventing the spread of infectious disease within the district the Council may make compensation to him for any loss he may sustain by reason of such stoppage:

Principal of
school to
furnish list
of scholars
in certain
cases.

31. Whenever any scholar who attends any school within the district shall be known to be suffering from any infectious disease the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends shall forthwith on becoming aware of the fact send notice thereof to the medical officer of health and shall furnish to the Council at their request a list of the scholars attending thereat together with their addresses and in default thereof shall be liable to a penalty not exceeding forty shillings. The Council shall pay to the person furnishing any such list as aforesaid for such list the sum of sixpence and after the rate of sixpence for every twenty-five scholars named therein.

Council may
pay expenses
of person in
hospital.

32. Where a person not being a pauper is received as a patient into any hospital for infectious disease the Council may themselves pay the whole or any part of the expenses arising out of the reception and maintenance of such person.

Prohibiting
conveyance
of infected
persons in
public
vehicles.

33. After the Council have provided an effective ambulance service for the district to the satisfaction of the medical officer of health of the county council of the east riding of Yorkshire it shall not be lawful for any owner or driver of a public vehicle used for the carrying of passengers at separate fares knowingly to convey or for any other person knowingly to place in any such public vehicle a person suffering from any infectious disease or for a person suffering from any such disease to enter any such vehicle and every person offending against this enactment shall for every such offence be liable to a fine not exceeding forty shillings.

Child suffer-
ing from
infectious
disease not
to attend
school.

34. No person being the parent or having the care or charge of a child who is or has been suffering from infectious disease shall after a notice from the medical officer of health that the child is not to be sent to school permit such child to attend school without having procured from the medical officer of health a certificate (which shall be granted free of charge upon application)

that in his opinion such child may attend without undue risk of communicating such disease to others. A.D. 1904.

If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

35. The medical officer of health may enter any public elementary school within the district at all reasonable times and examine the scholars attending the same and may exclude from attendance thereat for such period as he shall consider requisite any scholar who in his opinion is suffering from infectious disease or is likely to spread infection. Power to medical officer to examine school children.

The medical officer of health shall upon the exclusion of any scholar in manner aforesaid give notice thereof in writing to the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends and shall send a copy of such notice to the parent or guardian of the scholar.

Any person who shall obstruct the medical officer of health in carrying into effect the provisions of this section or who shall permit any scholar to attend school after he shall have been excluded as aforesaid and before the expiration of the period of exclusion shall be liable to a penalty not exceeding forty shillings.

36.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity or other materials used in the manufacture thereof who within the district— For regulating manufacture and sale of ice cream.

(A) Causes or permits ice cream or any similar commodity to be manufactured sold or stored in any cellar room which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer of health;

shall be liable for every such offence to a penalty not exceeding forty shillings.

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(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice cream or similar commodity) suffering from any infectious disease the medical officer of health may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Council shall compensate the owner of the ice cream commodity or materials so destroyed.

Public notice
to be given
of provisions
of this Part
of Act.

37. Public notice of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two local newspapers circulating in the district and by a notice affixed outside the offices of the Council and by such further means (if any) as the Council deem reasonable for conveying notice of the provisions of this Part of this Act to persons affected or likely to be affected thereby. A copy of a newspaper or the newspapers containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with.

PART VI.

BUILDINGS AND STREETS AND SANITARY MATTERS.

What to be
deemed new
buildings.

38. From and after the passing of this Act—

The conversion into a dwelling-house of any building or part of a building not originally constructed for human habitation ;

The conversion of a building which when originally erected was legally exempt from the operation of any building byelaws in force within the district into a building which had it been originally erected in its converted form would have been within the operation of those byelaws ;

The re-conversion into a dwelling-house of any building which has been discontinued as or appropriated for any purpose other than that of a dwelling-house ;

The making of any addition to any existing building by raising any part of the roof or making any projection therefrom but so far as regards such addition only ;
and

The roofing or covering over of any open space between walls or buildings ;

shall for all the purposes of this Act and of the Public Health Acts and of any byelaw made thereunder respectively be deemed to be the erection of a new building.

A.D. 1904.

As to
temporary
and movable
buildings.

39.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Council for permission so to do and such application shall be accompanied by a plan and section of the proposed building drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

(2) The Council shall within one month after the delivery of the plan section and specification signify in writing their approval or disapproval of the intended building to the person proposing to erect or set up the same.

(3) The Council may attach to their approval any condition which they may deem proper with regard to the sanitary arrangements of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

(4) If any such building is commenced erected or set up without such application accompanied by such plan section and specification or after the disapproval of the Council or before the expiration of the said one month without such approval or is in any respect not in conformity with any condition attached by the Council to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Council or any prolongation thereof the owner of such building shall be liable to a penalty for every such offence not exceeding forty shillings and to a daily penalty not exceeding the like amount and the Council may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered summarily as a civil debt from the owner of the building or from the person erecting or setting up the same at their discretion.

(5) The following buildings and works shall be exempt from the operation of this section:—

- (A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the district with respect to new buildings and any tent not remaining for more than seven days;

A.D. 1901.

- (B) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be pulled down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Council may cause the same to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered summarily as a civil debt from the owner of the building or from the person erecting or setting up the same at their discretion; and
- (c) Any wooden or other structure or erection erected or set up for the purpose of protecting or of preventing the acquisition of any right of light.

Power to
sell materials
of temporary
and movable
buildings.

40. When a temporary or other building referred to in the last preceding section is pulled down or removed by the Council under the powers of this Part of this Act the Council may sell the materials thereof or any part of them and shall apply the proceeds of the sale in and towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance to the owner of such structure.

Approval of
plan to be
void after
certain
intervals.

41. The approval by the Council of any plan or section of any street or building shall be null and void if the execution of the works specified in such plan or section shall not be commenced within the following periods (that is to say):—

As to plans approved after the passing of this Act within two years from the date of such approval; and

As to plans approved before the passing of this Act within two years from the passing of this Act;

and at the expiration of these respective periods fresh notice deposits and approval shall unless the Council otherwise determine be requisite.

The Council shall give notice of the provisions of this section to every person intending to lay out any street or to erect a new building the plans for which shall have been approved before the passing of this Act but the laying out of which street or the erection of which building shall not have been commenced and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act.

42. The Council may retain any drawings plans sections specifications and written particulars descriptions or details deposited with the Council in pursuance of any enactment for the time being in force in the district or of any byelaw made thereunder.

A.D. 1904.

Retention of plans deposited with Council.

43. When any plans or sections of any new street are submitted to the Council for approval the Council may vary or alter the position direction or level of any intended new street for the purpose of causing it to communicate in a direct or more direct line with any other street adjoining or leading thereto. The Council shall make compensation to any person who may be injuriously affected by the exercise of the powers conferred by this section.

Power to vary position or direction of new streets.

44. The Council may by resolution declare the point or limits at or within which any new street is to be taken as beginning or ending.

Council may declare where streets begin and end.

45. Every person desirous of forming a communication for horses or vehicles across any footway so as to afford access to any premises from a street repairable by the inhabitants at large shall prior to commencing the work give notice in writing of such desire to the Council and shall if so required by them submit to them for their reasonable approval a plan of the proposed communication showing where it will cut the footway and what provision (if any) is made for kerbing for gullies and for a paved crossing and the dimensions and gradients of necessary works and shall execute the works at his own expense under the supervision and to the reasonable satisfaction of the surveyor and in case a plan shall have been approved then in accordance with the plan so approved and not otherwise and if any person drives or permits or causes to be driven any horse or vehicle across any footway unless and until such communication has been so made he shall for each such offence be liable to a penalty not exceeding forty shillings in addition to the amount of damage (if any) thereby done to the footway:

Crossing for horses or vehicles over footpath.

Provided that nothing in this section shall be deemed to apply to the temporary crossing of footways during building operations if means satisfactory to the Council be taken to protect such footways from injury and for the convenience of foot passengers.

46. Whenever the surveyor or the medical officer of health or inspector of nuisances has reasonable grounds for believing

Owner &c. to permit application of test to drains.

A.D. 1904. — that the drains connected with any building are defective so as to cause risk to health he may after twenty-four hours' notice and with the consent (except in the case of houses let in separate dwellings) of the owner or occupier of such building or in the event of objection by any such owner or occupier after obtaining the order of a court of summary jurisdiction apply the smoke or coloured water or similar test as he may consider efficient to such drains for the purpose of discovering any defects therein. Any owner or occupier who refuses notwithstanding any such order to allow such test to be made or to give all reasonable facilities for making such test shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

If the drains be found defective the owner of the premises shall be bound (subject to the terms of any lease or other contract) on receiving notice from the Council to that effect specifying generally the nature of the defect to carry out all necessary operations for remedying the same within a reasonable time to be named in such notice and if he makes default in so doing the Council may enter and execute the work and recover the expenses thereof from the owner or other person liable under the lease or contract in a summary manner as a civil debt or where the owner is the person liable as private improvement expenses are recoverable under the Public Health Acts.

Provided that nothing in this section shall authorise the use of a test by means of water under pressure.

Yards to be paved.

47. If any yard or open space in connection with any dwelling-house erected before the passing of this Act shall not be so formed flagged asphalted or paved as to allow of the surface water being carried off to the drains the Council may give to the owner of such house notice in writing requiring him within fourteen days after such notice shall have been so given to proceed to form and to flag asphalt or pave the whole or so much of such yard or open space as will allow of the surface water being carried off to the drains and within twenty-eight days after such notice shall have been so given to complete such several works to the satisfaction of the Council and if such owner shall make default in complying with any of such requirements to the satisfaction of the Council within the respective times aforesaid the Council may if they think fit execute the works necessary for carrying out such requirements and the expenses incurred by them in so doing shall be paid to the Council by such owner and may be recoverable summarily as a civil debt.

48. It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Council except in accordance with the provisions of the bye-laws relating to the drainage of new buildings.

A.D. 1904.

As to reconstruction of drains.

Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding five shillings.

49. The Council may on the erection of any new building when a sewer and water supply sufficient for the purpose are reasonably available by written notice to the person by whom plans relating to the new building are deposited require that such new building shall be provided with proper and sufficient water-closets. Any person offending against any requirement of the Council under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Power to require water-closets for new buildings.

50.—(1) Where any person deems himself aggrieved by any requirements of the Council under the preceding section such person may within fourteen days after the service of notice of the requirement appeal to a court of summary jurisdiction and the court may make such order in the matter as to them may seem equitable and the order so made shall be binding and conclusive on all parties.

As to appeal under last preceding section.

(2) Pending the decision of the court upon such appeal the Council shall not be empowered to execute any works included in the notice.

51. Every new building exceeding thirty-five feet in height (used or intended to be used as a tavern hotel hydropathic establishment boarding house or school) shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Council shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

Means of escape from buildings in case of fire.

Nothing in this section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

A.D. 1904.

Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Council may require enlarged sewer.

52. If in any new street the Council for the purpose of main drainage or otherwise shall require a larger sewer or drain to be made than they consider necessary for the ordinary sewerage or drainage of such new street the person laying out such new street shall construct such enlarged sewer or drain in accordance with the requirement of the Council and the additional cost thereof as ascertained by the surveyor shall be paid by the Council.

Acts &c. to be deemed nuisances within Public Health Act 1875.

53. For the purposes of the Public Health Act 1875—

- (1) Any cistern used for the supply of water for domestic purposes so placed constructed or kept as to render the water therein liable to contamination causing or likely to cause risk to health ;
- (2) Any gutter drain shoot stack pipe or down spout of a building which by reason of its insufficiency or its defective condition shall cause damp in such building or in an adjoining building ;
- (3) Any deposit of material in or on any building or land which shall cause damp in such building or in an adjoining building so as to be dangerous or injurious to health ;

shall be deemed to be nuisances and liable to be dealt with summarily under the provisions of that Act.

Council may require old drain to be laid open for examination by surveyor before communicating with sewers.

54. Before any drain existing at the time of the passing of this Act and not then communicating with any sewer of the Council shall be made to communicate with any sewer of the Council the Council may require the same to be laid open for examination by the surveyor and no such communication shall be made until the surveyor shall certify that such drain may be properly made to communicate with such sewer and the surveyor shall cause the ground to be closed and any damage done to be made good as soon as can be and the expense of the works shall be defrayed by the Council.

As to urgent repairs to private streets.

55.—(1) In cases where urgent repairs are required to any street not being a highway repairable by the inhabitants at large and where for want of such repairs danger exists to passengers or vehicles in such street the Council may give notice in writing

to the owners of the premises fronting adjoining or abutting on such parts thereof as may require such repairs requiring them to execute within a time to be specified in such notice such repairs. A.D. 1904.

(2) If within such reasonable time as the Council may in such notice have specified such repairs are not executed the Council may execute the same and may recover the cost of so doing from the owner or owners in default or if there be more than one owner in proportion to the frontage summarily as a civil debt.

(3) If the Council are unable to discover the name or abode of any owner the Council may execute such repairs without having served upon him any notice.

56. If it appear to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Council may when the drains for such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners or occupiers of such houses in such manner as the Council shall determine and if constructed by the Council may be recovered by the Council from such owners or occupiers in a summary manner before a court of summary jurisdiction: Council may order houses to be drained by a combined operation.

Provided that the Council shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Council.

57. The Council may by notice in writing require the owner or occupier of any dwelling-house to provide galvanised iron dustbins in lieu of ashpits and such dustbins shall be of such size and construction as may be approved by the Council and any owner who fails within fourteen days after notice given him to comply with the requirements of the Council shall for every such offence be subject to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings Provided that this section shall not apply to any dustbins or ashpits in use at the commencement of this Act so long as the same are of suitable size and in proper order and condition. Regulation dustbin.

A.D. 1904.

Exemption
for railway
property.

58. Nothing contained in this Part of this Act or in any byelaws to be made thereunder shall apply to any building (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connection with their railway.

PART VII.

FIRE BRIGADE.

Power to
police con-
stable &c. to
enter and
break open
premises in
case of fire.

59. Any police constable acting under the orders of his superior officer and any member of the fire brigade of the Council being on duty and any officer of the Council may enter and if necessary break into any building in the district being or reasonably supposed to be on fire or any building or land adjoining or near thereto without the consent of the owner or occupier thereof respectively and may do all such acts and things as they may deem necessary for extinguishing fire in any such building or for protecting the same or rescuing any person or property therein from fire.

Captain of
fire brigade
or other
officer to
have control
of operations.

60.—(1) The captain or superintendent of the fire brigade of the Council or other officer of such fire brigade for the time being in charge of the engine or other apparatus for extinguishing fires attending at any fire within the district shall from the time of his arrival and during his presence thereat have the sole charge and control of all operations for the putting out of such fire whether by the Council or any other fire brigade including the fixing of the positions of fire engines and apparatus the attaching of hose to any water pipes or water supply and the selection of the parts of the building on fire or of adjoining buildings against which the water is to be directed.

(2) The officer in charge of the police at any fire in the district shall have power to stop or regulate the traffic in any street whenever in his opinion it is necessary or desirable to stop or regulate such traffic for the purpose of extinguishing the fire or for the safety or protection of life or property and any person who wilfully disobeys any order given by such officer in pursuance of this section shall be liable to a penalty not exceeding five pounds.

PART VIII.

FINANCE AND RATING.

Power to
Council to
borrow.

61. The Council may from time to time independently of any other borrowing power borrow at interest on the following

securities such sums as shall be requisite for the following purposes (that is to say):— A.D. 1904.

(A) For the purposes of the water and gas undertakings of the Council as extended by this Act such sums as the Local Government Board may sanction upon the security primarily of the revenues of those undertakings respectively and if they think fit in addition on the security of the district fund and general district rate; and

(B) For paying the costs of this Act as hereinafter defined on the security of the district fund and general district rate the sum necessary for the purpose:

And in calculating the sums the Council may borrow under any other enactment any sums they may borrow under this Act shall not be reckoned. The powers of the Council as to borrowing and re-borrowing under this Act shall not be restricted by any of the provisions of the Public Health Acts.

62. The Council shall pay off all moneys borrowed by them for the paying the costs of this Act within five years from the passing of this Act and shall pay off all moneys borrowed with the sanction of the Local Government Board within such periods as that Board may sanction and those respective periods shall for the purposes of the sections of the Act of 1898 applied by this Act be deemed "the prescribed periods." Periods for payment off of money borrowed.

63. The following sections of the Act of 1898 shall be incorporated with this Act and shall apply to moneys borrowed under this Act (that is to say):— Sections of Act of 1898 to apply.

Section 53 Provisions of Public Health Act 1875 as to mortgages to apply;

Section 54 Power to borrow under Local Loans Act 1875;

Section 55 Payment off of money borrowed;

Section 57 Power to re-borrow;

Section 58 Regulations as to sinking fund;

Section 59 Annual return to Local Government Board with respect to sinking fund;

Section 60 Application of moneys borrowed;

Section 62 Protection of lenders from inquiry;

Section 63 District Council not to regard trusts;

Section 64 Saving for existing charges:

Provided that the provisions of section 58 of the Act of 1898 with respect to the sinking fund shall apply to any loans raised under the Local Loans Act 1875 in lieu of the provisions of

A.D. 1904. — section 15 of that Act Provided also that section 54 of the Act of 1898 shall be read and have effect as if the words “ debenture stock ” had been omitted therefrom.

As to
collection of
local rates.

64. From and after the passing of this Act the power of the guardians of the Scarborough Union to appoint collectors of poor rates in respect of the parish of Filey shall cease.

Form of
rate demand
note.

65. The Local Government Board may prescribe the form of rate to include the poor rate, district rate or any other rate or rent and they may in respect of such rates and rents prescribe a form of demand note, rate book receipt and other necessary documents in respect of such rates and rents and any forms so prescribed shall be sufficient in law.

Expenses of
execution of
Act.

66. All expenses incurred by the Council in carrying into execution the provisions of this Act (except such as are to be paid out of borrowed money or are otherwise provided for) shall be paid out of the district fund and general district rate.

PART IX.

LEGAL PROCEEDINGS.

General
provisions as
to byelaws.

67. All the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 (except so much thereof as relates to byelaws made by a rural sanitary authority) shall apply to all byelaws from time to time made by the Council under the powers of this Act. Provided that the Secretary of State shall be the confirming authority for byelaws made under the section of this Act the marginal note whereof is “ Byelaws as to sea-shore ”. Provided also that no byelaw affecting the sea-shore below high-water mark shall come into operation until the consent of the Board of Trade has been obtained.

Informations
by whom to
be laid.

68. Save as herein expressly provided all informations and complaints under and for the breach of any of the provisions of this Act or of any byelaws made thereunder or of the Town Police Clauses Act 1847 or of the Towns Improvement Clauses Act 1847 as incorporated with the Public Health Act 1875 or the Town Police Clauses Act 1889 may be laid and made by any officer of the Council duly authorised in that behalf or by the clerk or by any police officer acting for or within the district.

Authentication
and service of
notices.

69. In the case of any notice or demand under this Act requiring authentication by the Council the signature of the

clerk or other duly authorised officer of the Council shall be sufficient authentication. Notices orders and any other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided always that in the case of any company any such notice order or document shall be delivered or sent by post addressed to the secretary or clerk of the Company at their principal office or place of business.

A.D. 1904.

70. Any person deeming himself aggrieved by any order determination or requirement or the withholding of any certificate licence or consent or approval of or by the Council or of any officer or valuer of the Council or by the conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts.

As to
appeal.

71. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recoverable as penalties but may be recovered summarily as civil debts.

Recovery of
penalties.

72. All penalties recovered by the Council or any officer of the Council on their behalf under this Act or any byelaws thereunder shall be paid to the treasurer to the Council and carried by him to the credit of the district fund.

Penalties to
be paid to
treasurer.

73. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that no person shall be punished twice for the same offence.

Saving as to
indictments.

74. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate or by reason of his being a member of the Council.

Judge not
to be dis-
qualified by
payment of
rates.

A.D. 1904.

Powers of
Act to be
cumulative.

75. All powers rights and remedies given to the Council by this Act (except those given by Part III. of this Act) shall be deemed to be in addition to and not in derogation of any other powers rights and remedies conferred on them or on any committee appointed by them by the Public Health Acts and the Council or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not passed Provided that no person shall incur more than one penalty (other than a daily penalty) for the commission of the same offence.

PART X.

MISCELLANEOUS.

Power to
contribute
towards
band.

76. The Council may pay or contribute towards the payment of a band of music for the district provided that the amount of such payments or contributions do not in any year exceed a sum equal to a rate of one penny in the pound on the assessable value of the district for the purposes of the general district rate.

Chairs and
seats for
public use.

77. The Council may from time to time place or authorise any person or persons to place seats or chairs in any street or other public place or on any part of the sea-shore for the use of the public and may if they think fit charge or allow such person or persons to charge a reasonable sum for the use of chairs and may make byelaws for regulating the use of seats and chairs and for preventing injury or damage thereto.

In executing
work for
owner Coun-
cil not liable
for damage.

78. Whenever the Council under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work act or thing in default of the owner or occupier and in the absence of default negligence or misconduct on the part of the Council or of any contractor or person employed by them are required to pay damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering such work act or thing the amount thereof when paid shall be added to and be deemed to be part of the expenses payable by such owner or occupier.

Power
to Local
Government
Board to
direct in-
quiries.

79.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary for giving effect to any of the provisions of this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have

for the purposes of inquiries directed by that Board under the Public Health Act 1875. A.D. 1904.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

80. When any compensation damages expenses costs or charges is or are directed to be paid under this Act and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in manner provided by the Public Health Acts. Compensation how to be determined.

81. Except where otherwise expressed to the contrary any notice to or demand on the Council under this Act may be served on the Council by being delivered to the clerk or by being sent through the post in a prepaid letter addressed to the clerk. Service of notice to Council.

82. The Council may appoint officers for securing the observance of Part IV. of this Act and of the byelaws and regulations made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant. Power to appoint officers.

83. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown. Crown rights.

84. The costs charges and expenses preliminary to and of and incidental to the preparing applying for and obtaining and passing of this Act including the costs charges and expenses preliminary to and connected with the compliance with the requirements of the Borough Funds Acts 1872 and 1903 as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the district fund and general district rate or out of moneys borrowed for the purpose under this Act. Costs of Act.

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